GEORGE NYASHANU
versus
GEORGE MARONGEDZE
and
URBAN MOVEN MAHACHI CO-OP SOCIETY LTD
and
URBAN DEVELOPMENT CO-OPERATION

HIGH COURT OF ZIMBABWE
TAKUVA J
HARARE, 23 January and 15 June 2026

Civil Trial

T.Kabudya for the Plaintiff
Miss T.A Chimutsipa for the 1st Defendant
No appearances for 2nd and 3rd Defendants.

TAKUVA J

Plaintiff issued summons against the defendant claiming:

"(1) An order declaring that,
(i) The plaintiff is the rightful and lawful owner of stand number 18824 Stoneridge Farm Harare.
(ii)That the clearance card by the third Defendant and confirmatory letter by the second Defendant at law confer a right of ownership of the stand to the Plaintiff.
(iii)The first defendant is consequently illegally occupying the premises at the stand.
2. An order evicting the first defendant and all those claiming occupation through him from stand No.18824 Stoneridge Farm Harare, and that in the event of the first Defendant or any other person as herein referred failing to comply with this order within 14 days of the order, the Sheriff of the High Court, or his deputy be allowed to evict such persons.
3. An order for the first defendant to pay costs on a legal practitioner and client scale."

Background facts.

On 26th August 2004, the second defendant, a duly registered housing co-operative was given authority to develop the remainder of Stoneridge Farm into residential stands. The Plaintiff was allocated stand No.18824 in Stoneridge Farm around 12 of January 2015.In 2016, the Ministry of Local Government, Public Works and National Housing handed the Harare South Housing project to the third Defendant who recognised the Plaintiff as the registered owner of the said stand.

Between 2015 and October 2022, The Plaintiff was in possession of the stand and he built an unfinished structure, drilled a borehole and has been conducting agricultural activities on the stand. Sometime in October 2022 the first Defendant started developing the stand claiming its ownership, triggering this action.

The Issue

At the joint Pre –Trial Conference the sole issue agreed to is whether or not the Plaintiff is the rightful and lawful owner of stand no.18824 Stoneridge Farm, Harare.

Plaintiff's case

Plaintiff led evidence through Mr Zvamaida Murwira who testified that the second Defendant was registered as a housing cooperative in terms of section 17 of the Cooperative Societies Act [*Chapter 24:04]*.He also confirmed that the second Defendant obtained authority to develop the remainder of Stoneridge Farm on the 26 August 2004.Further the witness testified that around 12th January 2015, Plaintiff was allocated a residential stand No.18824 Stoneridge by the second Defendant.

The Plaintiff further led evidence from the Chairman of the second Defendant who confirmed that the second Defendant was formed in 2004.He confirmed that second Defendant was granted authority to develop the farm into residential stands. This was during the land reform programme. The Chairman confirmed that the stand was allocated to the Plaintiff in January 2015 and he only heard of first Defendant's claim in 2022.

First Defendant's Case

The first Defendant opposed the claim and led evidence from two witnesses George Marongedze and Isaac Madziwa. He maintained that the stand was allocated in 2014 while they were still resident in ARLINGTON. After the allocation, first Defendant stated that he would occasionally visit the stand. The stand was allocated to him by BUDIRIRO YEVATEMA Housing Cooperative and first Defendant went to Stoneridge Farm in December 2015.At Stoneridge, they were received at the second Defendant's offices. According to the first Defendant, there were no people living there. The explanations given by the first Defendant for starting developments in 2022 was that he was not feeling well during the entire seven (7) years.

Both first Defendant and Madziwa insisted that they were relocated under the Government Layout Plan from Arlington through a directive in 2014.However they only moved in 2015 after a Presidential directive that they immediately relocate to Stoneridge Park. According to Mr Madziwa, the first Defendant is the owner of the stand by

> "Virtue of the drawing of papers of which he picked no 188424 in 2014 at the time that they were notified of their need to move from Arlington"

However the record shows that as at 2 March 2015, Budiriro Yevatema, the cooperative to which the first Defendant belongs was still applying for land to the Ministry – see Letter on p.43 of the record .What this means is that the first defendant cannot be said to have been in undisturbed possession in 2014.When he was in Arlington in December 2015.As at 2 March 2015,Budiriro Yevatema, had not yet been granted authority to allocate the land in issue to its members .Accordingly, the purported allocation of stand 18824 to the first defendant by Budiriro Yevatema was improper .In this respect ,the principle that *nemo dat quid non habet* and that *nemo plus iuris ad alian transfere potest quam ipse habet*:no – one can give what he does not have and no one can transfer any right greater that he himself possesses-see *SILBERBERG* and *Schoeman*:The law of property (seconded)at pages 72-73.*MAYOR NYAMUKONDIWA and Anor* HB 41/18.

What is also shown by the evidence is that there is no legal basis for the relocation of the first defendant and others from ARLINGTON STONERIDGE Farm. The first Defendant and the Chairman of the second Defendant conceded that their relocation was as a result of a Presidential Decree in 2015.The Ministry had not yet granted its authority for the second Defendant. As such the first Defendant and his colleagues settled themselves unlawfully.

The first Defendant heavily relied on a "Map" drawn by the Ministry of local Government pointing out the space in Stoneridge .He also relied on a letter dated December 2015.Finally, reliance was placed on documents obtained from the Surveyor-General's office showing that first Defendant paid all Survey fees on his stand .He also testified that when the stands were shared 61:61 the stand in dispute was allocated to the first Defendant.

Analysis.

This matter pitts two housing cooperatives against each other on one hand, and the Ministry of Local Government on the other. The evidence also reveals that administrative and

formal procedures were sacrificed on the alter of political decisions made in the heat of the moment during land reform programme.

In order to resolve the sole issue in *casu* it is necessary to closely examine the chronological sequence of events and the role played by the two housing cooperatives plus the Ministry of Local Government. It is first Defendant's evidence that the stand was allocated to him in 2014.He confirms this position in his plea where he states that "he was in undisturbed possession of his stand since 2014"

The first Defendant and his colleagues settled themselves in Arlington without any legal basis. The settlers were not given an opportunity to challenge or question the directive to relocate. Since the Plaintiff's housing cooperative's members were already settled in the area it is possible for the first defendant to grab a stand belonging to the plaintiff in the issuing chaos. I find therefore that the settlement in Stoneridge at that stage (i.e 2014) was illegal. Accordingly, whatever was birthed from an illegality is a nullity.

The first Defendant did accept that for seven (7) yrs he did nothing to assert his rights. the explanation is that he was prevented by sickness. There is however no evidence of sickness

and the court cannot make any finding based on sickness –*see Delta Beverages Pvt Ltd v MURANDU* SC 38/15.Also, the issue of sickness was not pleaded on first Defendant's pleadings, making that fact inconsequential –see *ZAOGA* v *LIVRE INVESTMENTS (Pvt)Ltd* HH 471/25 at page 4.

It was also first Defendant's submission that his wife would regularly visit the stand at the time he was sick. Surprisingly, she did not assert her rights for seven years. Obviously, she saw the developments but chose to do nothing. In my view, the sickness argument does not take first Defendant's case any further.

The first Defendant argued that the map, survey diagrams and survey fees of 2025 is proof of ownership of stand in issue. However, the bottom line is that as long as there is no evidence allocation of the land to BUDIRIRO YEVATEMA, such documents do not prove ownership over the land.

In my view, the balance of probabilities show that stand No.18824 Stoneridge Farm Harare was allocated to the Plaintiff by the second defendant. The first Defendant said they showed up and occupied the stand without any legal basis. Plaintiff was allocated the stand in January 2015.On the other hand the first Defendant and the other members of Budiriro

Yevatema were allegedly relocated in December 2015 long after the Plaintiff had already settled on the stand in January 2015.

In the circumstances, it is ordered as follows,

1. The Plaintiff is the rightful and legal owner of stand 18824 Stoneridge Farm Harare.
2. The Clearance Card by the third Defendant and confirmatory letter by the second Defendant at law confer a right of ownership of the stand to the plaintiff.
3. The first Defendant is consequently illegally occupying the premises at the said stand.
4. The first Defendant and all those claiming occupation through him be and are hereby evicted from stand No.18824 Stoneridge Farm Harare, and that in the event of the first Defendant or any other person as herein referred failing to comply with this order within 14 days of the order, the Sheriff of the High Court, or his Deputy be allowed to evict such persons.
5. The first Defendant to pay costs at ordinary scale.

TAKUVA J: ……

Matsikidze Attorneys at law, Plaintiff's Legal Practitioners
Zvimba law Chambers, First Defendant's Legal Practitioners